

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

RESPONDENTS' MOTION FOR AN EXTENSION OF TIME TO FILE AN ANSWER

Pursuant to Rule 71 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. §502.71, Respondents, by and through their undersigned counsel, respectfully move for an extension of time to file an answer, from December 8, 2020 to December 22, 2020 (or such later date as the Presiding Officer may decide). The reasons for this request are set forth below.

In the November 18, 2020 order denying Respondent's motion to dismiss, the Presiding Officer set December 8, 2020 as the due date for Respondents' answers to the complaint. Under Rule 221 of the Commission's Rules of Practice and Procedure, 46 C.F.R. §502.221, Respondents have fifteen (15) days from the date of the Presiding Officer's decision to file a motion for leave to file an interlocutory appeal. Respondents will be filing such a motion on

December 3, 2020. In Respondents' motion for leave to file an interlocutory appeal, they will also move that this proceeding be stayed pending a ruling on that appeal, a decision that is within the discretion of the Presiding Officer under Rule 221.

Because the Respondents' answers are currently due only five (5) days after they file the motion for leave to file an interlocutory appeal and to stay the proceeding, the Presiding Officer will not have ruled on that motion by the time Respondents' answers are currently due. Given that the filing of answers triggers other deadlines (initial disclosures, consultation regarding alternative dispute resolution, establishment of a discovery schedule), it would be inefficient to file answers and trigger those other deadlines if the case will be stayed pending appeal.

By extending the deadline for the filing of the answers to December 22, 2020 (or such later date as the Presiding Officer may decide), the parties should have the benefit of a ruling on the motion for leave to appeal/stay before answers are due. This would avoid the inefficiencies described above and allow the case to proceed in a more orderly fashion.

As required by 46 C.F.R. §502.71, Respondents have conferred with counsel for Complainant, who advised they would not oppose a motion by Respondents for an extension of a time of seven days to answer the Complaint to December 15, subject to there being no change to the December 18 deadline to file the joint status report. While Respondents appreciate Complainant's willingness to be flexible, Complainant's position does not appear to allow sufficient time for a response to and ruling on the motion for leave to appeal and for a stay prior to the due date for an answer.

WHEREFORE, Respondents respectfully request that the deadline for filing answers be extended to December 22, 2020, or such later date as the Presiding Officer may decide.

Respectfully submitted,

COZEN O'CONNOR

HOLLAND & KNIGHT

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By: _____

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DATED: December 2, 2020

¹ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation, and as co-counsel for Evergreen Line Joint Service Agreement.

WHEREFORE, Respondents respectfully request that the deadline for filing answers be extended to December 22, 2020, or such later date as the Presiding Officer may decide.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 2nd day of December, 2020, a true and correct copy of the foregoing Motion for an Extension of Time to File an Answer was served via electronic mail on:

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A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is fluid and cursive, with the first name "Wayne" and last name "Rohde" clearly distinguishable.

Wayne R. Rohde